

25CV01202 Timothy Silva vs Ryan Purkait

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-24

Motion: Motion: Compel Subpoena for Production for Business Records as to Uber

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Tentative Ruling: Timothy Silva vs Ryan Purkait

Case Number

25CV01202

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/24/2026 - 10:00

Nature of Proceedings

Motion: Compel Subpoena for Production for Business Records as to Uber

Tentative Ruling

Timothy Silva v. Ryan Purkait

Case No. 25CV01202

Hearing Date: June 22, 2026

HEARING: Plaintiff Timothy Silva's Motion to Compel Production of Business Records in Response to Subpoenas and for Monetary Sanctions

ATTORNEYS: For Plaintiff Timothy Silva: Anthony C. Kastenek, Philip Alexander, Harris Personal Injury Lawyers, Inc.

For Defendant Ryan Purkait: Brian S. Jeong, Law Offices of Beth M. Henderson

For Third Party Uber Technologies, Inc.: No appearance

TENTATIVE RULING: Plaintiff Timothy Silva's motion to compel production of business records in response to subpoenas and for monetary sanctions is continued to August 24, 2026, at 10:00 a.m. in this department. On or before July 2, 2026, plaintiff shall personally serve responding third party Uber Technologies, Inc. (Uber), via its registered agent, with this minute order, a notice of hearing, and plaintiff's moving papers, and file a proof of service with the court. On or before July 31, 2026, plaintiff shall file a supplemental meet and confer declaration pursuant to Code of Civil Procedure section 2016.040 and state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by this motion.

Background:

On February 24, 2025, plaintiff Timothy Silva initiated this action by filing a complaint against defendant Ryan Purkait, asserting one cause of action for negligence. As alleged in the complaint, on December 21, 2023, defendant was negligently operating a vehicle that caused a collision with plaintiff's vehicle, causing plaintiff injuries, loss of wages, and loss of earning capacity. (Compl., ¶¶ 13-17.)

On November 14 and 19, 2025, plaintiff served two deposition subpoenas for the production of business records on third party Uber, seeking the production of certain documents pertaining to defendant's driving activities with Uber. (Kastenek Decl., Exs. B-C.) According to plaintiff, Uber did not respond to the subpoenas despite follow-up requests from plaintiff's service agent. (Kastenek Decl., ¶¶ 6-7.)

On March 5, 2026, plaintiff filed a motion to compel production of business records from Uber and request for monetary sanctions in the amount of \$1,310. No party filed an opposition. [Note: Plaintiff's notice of motion seeks to compel documents from Uber Technology, Inc., but the subpoenas were issued to Uber Technologies, Inc. This appears to be a typo; see Motion, p. 1, ll. 27-28.]

Analysis:

"If a subpoena requires ... the production of ... documents ... the court, upon motion reasonably made by [a party of a witness] ... after ... notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions...." (Code Civ. Proc., § 1987.1, subd. (a).)

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers must be served and filed in accordance with Code of Civil Procedure section 1005 and, when applicable, the statutes and rules providing for electronic filing and service." (Cal. Rules of Court, rule 3.1300(a).) "[A]ll moving and supporting papers shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) "[Notice of Motions] ... must state when, and the grounds upon which it will be made, and ... [i]f any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice...." (Code Civ. Proc., § 1010.) "A motion ... is deemed to have been made and to be pending before the court for all purposes, upon the due service and filing of the notice of motion...." (Code Civ. Proc., § 1005.5.) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (Cal. Rules of Court, rule 3.1300(c).)

Here, the proof of service filed with plaintiff's motion does not indicate that service of this motion was effectuated on Uber. The proof indicates that service of this motion was made on counsel for defendant, Cara L. Porter, by electronic transmission. Defendant is not the responding party as to the subpoenas at issue in this motion. The court notes that Uber did not file a response to this motion. The court's file contains no indication that Uber received notice of this motion. Uber

must be provided with notice and an opportunity to be heard.

The court will continue this motion so that plaintiff may effectuate service of this motion on Uber and meet and confer. The court finds that the emails from plaintiff's service company do not constitute a good faith meet and confer conference. The court will require plaintiff to file a supplemental "meet and confer declaration in support of [his] motion [and] state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, italics added.) The court will also require that plaintiff personally serve Uber's registered agent with this minute order, a notice of hearing, and plaintiff's moving papers, and file a proof of service with the court. (See Code Civ. Proc., § 1011; Cal. Rules of Court, rule 3.1300(c).)

Judges

Judge Colleen Sterne

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